

AFFILIATION AGREEMENT

DATE:

AFFILIATING AGENT/BROKER:

MAILING ADDRESS OF AGENT/BROKER:

STATES WHERE AGENT/BROKER IS LICENSED:

BOARD AFFILIATION(S):

1. Term

- a. This Agreement shall be for a period of one (1) year from the date noted above and will automatically renew from year to year on the annual anniversary date of affiliation as long as all fees and payments noted herein are current. Either party may terminate the affiliation by giving the other party thirty (30) days written notice.
- b. In the event of any misconduct on the part of the Agent, Foraker Realty Co reserves its sole right to terminate this affiliation immediately upon notice to the Agent/Broker.
- c. If either party fails to maintain an active real estate brokerage license, broker or salesperson license pursuant to the laws, rules and regulations of the real estate commission(s) of the state(s) in which they are licensed, this affiliation agreement will be terminated immediately.

2. Independent Contractor

- a. Agent/Broker will NOT be treated as an employee with respect to any services performed under this Agreement for federal or state tax purposes or for purposes of workers' compensation rules and regulations.
- b. Agent/Broker is deemed to be an Independent Contractor and is free to control all time, energy, efforts and skills as they see fit. The Agent/Broker is not required to work any specified hours or attend any sales meeting and does not have any specific performance requirements other than those specified in this Agreement.
- c. Agent/Broker acknowledges that they are working under the supervision of

Foraker Realty Co. and its Broker of Record(s) only to the extent required by the rules, regulations and laws of the real estate commissions for the respective licensed states and will perform all other required activities independently and without control of Foraker Realty Co.

d. Agent/Broker acknowledges and understands that Foraker Realty Co. is in compliance with statutes, rules and regulations regarding workers compensation for each state in which it conducts business. Agent/Broker waives claim to their right of action in common law, under any statute or other law to recover any damages for any injuries sustained while conducting business anticipated under this Agreement and rejects any coverage provided by Foraker Realty Co. workers compensation insurance programs.

3. Website and other Marketing

- a. Agent/Broker is responsible for all marketing programs and costs involved in their specific business, including business cards, mailing costs, website development, etc. All of these programs are subject to approval by Foraker Realty Co. management and the rules and regulations of the real estate commissions who have jurisdiction for the specific marketing activities.
- b. Foraker Realty Co. will supply hanging yard signs with posts for use by the Broker/Agent, Broker/Agent is responsible for the installation fee of said yard sign. Should Foraker Realty Co. not have adequate signs available, Agent/Broker will be responsible for purchasing such signs from the designated sign vendor and will be in the same format as designated by Foraker Realty Co.

4. Leads and Prospects

- a. Prospects and contacts received by Foraker Realty Co. that are related to a specific listing of the Agent/Broker will be referred to that Broker/Agent, unless the call is answered by Agent On Duty.
- b. Should the Agent/Broker elect to terminate their relationship with Foraker Realty Co. subject to the approval of the client/customer, any lead, prospect or client will transfer with the Agent/Broker to a new brokerage. Should the client/customer or transaction remain with Foraker Realty Co., The Agent/Broker will receive a referral payment of 25% of the commission received upon settlement of the transaction on the side or sides which involved the Agent/Broker, as long as the Agent/Broker has affiliated with a new brokerage and fulfilled all requirements under this Agreement.
- c. All other commissions to be paid in accordance with Attachment A.

5. Deposits and Contracts

- a. Agent/Broker shall deliver all deposits and/or other funds related to any and all business transactions conducted on behalf of Foraker Realty Co. within 24 hours of receipt.
- b. Agent/Broker will deliver all contract documents and related attachments, disclosures, forms, etc. as soon as they are completed and signed by all respective parties. These items may be delivered electronically as specified by Foraker Realty Co. management.
- c. Should such deposits and contract documents not be delivered to Foraker Realty Co., any commission payments due to Agent/Broker may be held until the

documentation file is completed.

6. License, MLS, Realtor Board and Membership Fees

- a. Licensing fees - Agent/Broker is responsible for maintaining a current license in good standing for each state in which they are licensed to conduct real estate business, including all fees required.
- b. MLS fees - Agent/Broker is responsible for all fees associated with maintaining an active account with the local MLS systems, should they elect to use that service.
- c. NAR/Board of Realtors - In accordance with the rules of the National Association of Realtors and the local Boards of Realtors, Agent/Broker must maintain an active membership in good standing with at least one (1) Board of Realtors serving the area in which they conduct real estate business. Agent/Broker is responsible for all fees associated with this membership.

7. Errors and Omissions Insurance and Liability Insurance

- a. Foraker Realty Co. will maintain a current policy for Errors and Omissions insurance which will include coverage for the Agent/Broker. Any deductible due to any claim against this policy will be the responsibility of the Agent/Broker. The deductible amount will not exceed \$10,000.00. Foraker Realty Co. will be responsible for the annual fee.

8. Confidential Information

- a. During the time the Agent/Broker is affiliated with Foraker Realty Co., they will be exposed to various information that is considered proprietary and confidential to Foraker Realty Co.. This includes information about Foraker Realty Co's customers and clients, its business practices and tools, and other various information. Agent/Broker agrees to treat this information as confidential and agrees not to share this information with anyone outside of Foraker Realty Co.

9. Affiliation fees and commission splits

- a. See Attachment A.

10. Company Video/Photo Content Ownership and Usage

- a. All video/photo content produced by Foraker Realty Co., including but not limited to promotional videos, educational materials, and any other video media, ("Company Videos") is the exclusive property of Foraker Realty Co.
- b. Agents are encouraged to utilize Company Videos for marketing and promotional purposes. However, when posting or distributing Company Videos, the Agent/Broker must ensure that the Foraker Realty Co. logo is prominently displayed on the video content.
- c. Furthermore, when posting Company Videos on social media platforms or any external websites, the Agent/Broker is required to tag or mention Foraker Realty Co.'s official social media profiles or website to ensure proper attribution and to enhance brand

visibility.

d. The Agent/Broker acknowledges that the use of Company Videos is subject to the approval of Foraker Realty Co., and must align with the company's branding guidelines and policies. Misuse or unauthorized alteration of Company Videos is strictly prohibited and may result in disciplinary action, up to and including termination of affiliation.

11. Other terms and conditions

- a. Indemnification. Foraker Realty Co. and Agent agree to indemnify and hold each other, their officers, directors, members, managers, partners and employees harmless from and against all claims, demands, suits, costs and expenses, including but not limited to reasonable attorney's fees at all levels, of whatever nature and description resulting from any representations, acts, omissions, negligence, willful misconduct or violation of laws, rules and regulations, codes of ethics, or terms or conditions of this Agreement. The provisions of this Section shall survive the termination of the Agreement.
- b. Delaware, Pennsylvania & Maryland law shall govern this Agreement.
- c. Entire Agreement. This Agreement and any addenda attached hereto or subsequently agreed to contain the final and entire Agreement between the parties and may not be modified or changed except by written agreement signed by all parties.
- d. Disputes. Should any disputes arise between the parties to this Agreement, all parties agree to submit to mediation and binding arbitration to resolve said disputes.

IN WITNESS WHEREOF, the parties have signed this Agreement on the date stated below, thereby showing their intent to be bound by the terms and conditions stated herein.

Agent/Broker Signature

Date Signed

Agent/Broker Printed Name

Foraker Realty Co.

By: _____
Signature

Date Signed

Printed Name

Title

Attachment: A

Commissions:

Admin Fee	\$495.00
Conveyancing (Optional)	\$300.00
Transaction Coordination (Optional)	\$300.00
Agent Generated business first 125k GCI/Year	
Agent Generated business 125k+ GCI/Yea	
Business Generated by Brokerage	50%
Personal Properties (Agent is buyer/Seller) 2/year	95%
Referrals are paid at agents normal split	

Additions:

Agent Website	Foraker Realty Co.
DotLoop	Foraker Realty Co.
Sentri Lockboxes	Foraker Realty Co.
Supra Lockboxes	Foraker Realty Co.
Lofty CRM	Foraker to pay membership agent to pay for upgrades
Supra or Ekey Subscription	Agent/Broker
Showing Time Subscription	

TEAM ADDENDUM TO THE INDEPENDENT CONTRACTOR AGREEMENT

This Team Addendum ("Addendum") is entered into this 1st day of October, 2024, by and between Foraker Realty Co. ("Brokerage") and _____ ("Agent"), who is affiliated with the team led by _____ ("Team Lead").

1. Commission Splits and Compensation

- a. The Agent acknowledges that Foraker Realty Co. will only negotiate commission splits and compensation terms directly with the Team Lead, not with the Agent individually. The Agent understands that all commission splits related to their transactions will be determined through negotiations between the Brokerage and the Team Lead.
- b. The Agent agrees that any commission earned on transactions, whether initiated by the Agent or provided by the Team, will be paid by the Brokerage to the Team Lead. The Team Lead will then be responsible for disbursing the Agent's share of the commission according to the terms agreed upon between the Team Lead and the Agent.
- c. Any additional compensation agreements or splits made between the Agent and the Team Lead will not supersede or alter the terms of this Addendum. In the event of any conflict, this Addendum shall take priority and govern the distribution of commissions.

2. Hold Harmless Agreement

- a. The Agent agrees to hold Foraker Realty Co. and the team, including the Team Lead, harmless from any and all claims, demands, actions, or causes of action arising from or relating to policies, procedures, teachings, leads, training programs, or other activities or decisions made within the team structure.
- b. The Agent further agrees that any disputes related to team policies or practices, including commission splits or compensation, will be resolved internally between the Agent and the Team Lead. The Brokerage will not be held responsible or liable for any team-related matters.

3. Team-Specific Policies and Procedures

- a. The Agent acknowledges that the Team Lead may establish additional policies, systems, or training requirements specific to the team, which may differ from Foraker Realty Co.'s general policies. The Agent agrees to comply with these team-specific rules while maintaining the independent contractor status outlined in the ICA.
- b. The Agent is responsible for communicating with the Team Lead regarding any concerns or discrepancies related to team policies, commissions, or expectations.

4. Leads and Prospect Management

- a. Leads and prospects provided by the team are subject to the team's internal distribution policies. The Agent acknowledges that all decisions related to lead assignments are at the discretion of the Team Lead and will be honored by the Agent.
- b. Any leads generated by the Agent independently shall be governed by the commission split agreement with the Team Lead and not by Foraker Realty Co.

5. Confidentiality and Team Practices

- a. The Agent agrees that any proprietary methods, tools, or business practices used by the team shall remain confidential and shall not be disclosed outside of the team without the Team Lead's written consent.
- b. This confidentiality clause supplements the confidentiality provisions found in the original ICA and applies specifically to team-specific methods and operations.

6. Termination

- a. In the event that the Agent terminates their affiliation with the team or the team is dissolved, this Addendum will terminate immediately, and the ICA will remain in full effect.
- b. The Agent agrees to honor any remaining commission agreements for transactions in progress at the time of termination, which will be handled as per the terms agreed with the Team Lead.

7. Priority of This Addendum

- a. The Agent acknowledges that this Addendum will take priority over any other agreements made between the Agent and the Team Lead regarding commissions, compensation, policies, or team practices. In the event of any conflict between this Addendum and any other agreement, the terms of this Addendum will govern and prevail.
- b. Any modifications to commission splits, compensation, or team-specific agreements must be communicated to the Brokerage through the Team Lead, and the Brokerage reserves the right to approve or deny any changes that conflict with this Addendum.

8. Miscellaneous

- a. This Addendum represents the entire understanding between the Agent and Foraker Realty Co. regarding team-related activities.
- b. No modifications or amendments to this Addendum shall be valid unless in writing and signed by all parties.
- c. This Addendum shall be governed by and construed in accordance with the laws of the Commonwealth of Pennsylvania.

IN WITNESS WHEREOF, the parties hereto have executed this Addendum as of the date first written above.

Agent Signature: _____

Date: _____

Agent Name (Printed): _____

Foraker Realty Co. Signature: _____

Date: _____

(Printed): _____

Team Lead Signature: _____

Date: _____

Team Lead Name (Printed): _____